



I am taking over an existing restaurant space that has an expired grease trap permit and a non-ADA compliant bathroom. What is the fastest way to get open legally in Champaign IL?

The fastest path is usually to do a same-layout change-of-ownership with no construction, get your health permit and city food license issued, and then phase in bathroom/grease-trap upgrades under an agreed plan with the authorities, rather than trying to fix everything before opening.^{[1] [2] [3]}

1. Confirm if you qualify for “operate while changing owner”

Champaign-Urbana Public Health District (CUPHD) explicitly allows operation during a change of ownership if certain conditions are met.^[1]

Key points from CUPHD’s change-of-ownership guidance:^[1]

- Operation may continue while plans are reviewed, provided the facility did not close between owners.^[1]
- Menu, concept, equipment, and layout must remain the same to stay in the “change of ownership” path; otherwise, you’re treated like new construction (slower).^{[2] [1]}

If the restaurant has already been closed, or you plan to change the layout/menu/equipment (like modifying the bathroom or kitchen line), CUPHD will likely require plan review and you cannot open until permits are issued.^{[2] [1]}

2. Immediate calls to make (day 1–2)

Contact all three authorities right away and clearly frame your goal as “fastest legal opening with phased upgrades”:

- CUPHD – Environmental Health: ask for
 - Change-of-ownership packet and required inspections for this specific address.^{[2] [1]}
 - Whether they will allow operation with the existing grease trap while you renew the permit/bring it into compliance, and what written commitments they want (maintenance logs, pumping schedule, upgrade deadline).^{[4] [5]}
- City of Champaign Building Safety: confirm if your taking over is “existing use / same occupancy” or triggers any building permit or occupancy re-inspection, especially because the restroom is not ADA-compliant.^[3]
- Urbana-Champaign Sanitary District (UCSD): confirm:

- Is there an existing grease interceptor on record at that address?
- What is needed to reinstate or transfer an expired grease trap permit, and whether they require physical upgrades before use.^[4] ^[3]

Explain to each that you intend to open as-is, with no construction at first, then do ADA and grease-trap upgrades as an alteration once cash flow starts.

3. Grease trap: how to avoid delaying opening

In Illinois, grease trap requirements are enforced by local wastewater and health authorities, and they care primarily about having a properly sized interceptor, a maintenance schedule, and pumping records.^[5] ^[4]

Ask UCSD and CUPHD specifically:

- If the existing grease trap and plumbing will be accepted **temporarily**, provided you:
 - Get it pumped/cleaned immediately and keep receipts on site.^[5]
 - Start a regular service schedule (often monthly or per their standard).^[5]
 - Submit any forms needed to renew/transfer the grease permit with a future upgrade date if they believe it's undersized.^[4] ^[5]
- Whether any physical work (e.g., installing or upsizing an interceptor) **must** be done before you serve food to the public, or can be scheduled after opening with a hard deadline.^[4] ^[5]

Your fastest route is to avoid triggering plumbing construction and a building permit before opening, unless they insist it's an immediate hazard.

4. Non-ADA bathroom: minimum to open vs full upgrade

You must meet both federal ADA and Illinois Accessibility Code (IAC) requirements to the **extent readily achievable** in an existing facility, but full new-construction compliance is often only required when you do alterations.^[6] ^[7] ^[8]

To move quickly:

- Have the building department and CUPHD inspect the current restroom and ask:
 - "What is the minimum scope you will require before granting occupancy / health permit?"
 - "Can we open while we plan a full ADA restroom alteration, if we provide an accessible route to the primary function area and an accessible toilet room within 200 feet elsewhere in the building?" ^[7] ^[6]
- Under the IAC, existing buildings must provide at least one accessible toilet room per sex, or one unisex toilet room when permitted by the Plumbing Code, located as near as possible to the main entrance and within 200 feet.^[6]
- ADA guidance allows in alterations that, when it is technically infeasible to make both men's and women's rooms accessible, an accessible unisex restroom in the same area can be an acceptable alternative.^[7]

If there is another accessible restroom in the building (for example, a shared hallway restroom), you may be able to open quickly by:

- Officially designating that as the accessible restroom for customers.^{[6] [7]}
- Posting signs with the International Symbol of Accessibility and directional signage from your non-compliant restroom to the accessible one, as ADA requires for non-compliant existing toilet rooms.^[7]

If no such restroom exists, the building department may require at least limited accessibility modifications (grab bars, clear floor space, door hardware and swing changes) as a small-scope alteration before granting occupancy, even if full re-build comes later.^{[8] [6] [7]}

5. Sequence to open as fast as possible

A practical step-by-step, optimized for speed in Champaign:

1. **Lock in “no construction yet” scope.** Tell CUPHD and the City that for opening you are not changing menu, equipment, or layout; you will use existing fixtures and only do cleaning and cosmetic work.^{[3] [2] [1]}
2. **Submit change-of-ownership and health permit application immediately.** CUPHD states an annual health permit and city food license must be issued before opening, but they may let you operate during ownership transition if conditions above are met.^{[2] [1]}
3. **Request pre-opening walkthroughs focused on life-safety and sanitation, not construction.** Ask the inspector on site: “Is there anything that absolutely must be fixed before you’ll sign off so we can open?” This keeps the initial punch-list as short as possible.^{[9] [2]}
4. **Get grease trap serviced and documented.** Have it pumped, fix obvious operational issues (covers, access), and keep logs ready for inspection while your permit/authorization with UCSD is renewed or updated.^{[5] [4]}
5. **Address only non-negotiable restroom issues immediately.** If the inspector identifies simple fixes (door closer force, grab bars, mirror height, clear floor space by moving storage) that can be done without permits, do those now and get documented approval that a full ADA rebuild will be handled as a later alteration.^{[8] [6] [7]}
6. **Obtain final health permit and city food license sign-off.** CUPHD issues city food licenses for Champaign on the city’s behalf, and both must be active for you to open.^[2]
7. **After opening, plan permitted construction for full compliance.** Once operating, work with an architect or engineer familiar with the 2018 Illinois Accessibility Code and local grease-trap rules to design restroom and kitchen plumbing upgrades and pull building/plumbing permits for those alterations.^{[8] [3] [6] [5]}

If you want, tell me exactly what changes you plan (new concept or same, menu, whether the space has shared building restrooms, prior closure length), and I can help you script the exact questions/emails to CUPHD, the City building official, and UCSD to maximize your chances of being allowed to open quickly while you fix things in phases.

1. <https://www.c-uphd.org/change-of-ownership.html>
2. <https://www.c-uphd.org/plan-review.html>
3. <https://champaignil.gov/fire/building-safety/building-permit-applications/>
4. <https://restaurant-regulations.com/il/grease-traps>
5. <https://millstadtrendering.com/grease-trap-regulations-for-restaurants-in-illinois-missouri/>
6. <https://ilga.gov/commission/jcar/admincode/071/07100400ZZ9996AR.html>
7. <https://www.access-board.gov/files/ada/guides/toilet-rooms.pdf>
8. <https://dceo.illinois.gov/content/dam/soi/en/web/dceo/cdb/business/codes/illinoisaccessibilitycode/documents/2018-illinois-accessibility-code.pdf>
9. https://www.c-uphd.org/documents/eh/food_service_sanitation_rr_cu.pdf
10. <https://restaurant-regulations.com/il/opening-checklist>